

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

Date Filed:

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KAREM McKOY,

Plaintiff,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

POLICE OFFICER TYLER ANGELO (Tax #: 959456) and
SERGEANT STEVEN C. SIERMALA (Tax #: 947491),

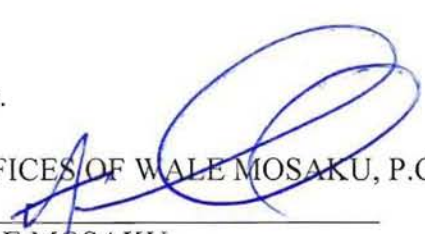
Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
September 14, 2021

Yours, etc.


LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

Defendants' Address(es):
New York City Police Department
75th Police Precinct
1000 Sutter Avenue
Brooklyn, New York 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
KAREM McKOY,

Plaintiff,

-against-

COMPLAINT

POLICE OFFICER TYLER ANGELO (Tax #: 959456) and
SERGEANT STEVEN C. SIERMALA (Tax #: 947491),

Defendants.

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KAREM McKOY (hereinafter "plaintiff"), by his attorney(s) THE LAW OFFICES OF
WALE MOSAKU, P.C., complaining of the defendants POLICE OFFICER TYLER
ANGELO (Tax #: 959456) and SERGEANT STEVEN C. SIERMALA (Tax #: 947491)
(hereinafter collectively referred to as "defendant officers"), upon information and well
founded belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

2. The plaintiff is an African-American male of full age.
3. At all relevant times the defendant officers were, and upon information and well founded belief, still are law enforcement officers in the employ of the police department of the City of New York (hereinafter "NYPD").

4. At all times herein, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.

FACTUAL ALLEGATIONS

5. On or about May 24, 2020 at approximately 11:00 p.m., on Blake Avenue at its intersection with Hemlock Street in Brooklyn, New York (subject location), the plaintiff was falsely arrested without probable cause by defendant officer Tyler Angelo.
6. Prior to the time of the plaintiff's arrest, at approximately 08:30 p.m., the plaintiff had attended a candle lighting vigil with his friend Tyree Johnson. Mr. Johnson had given the plaintiff a ride to the vigil in his vehicle. The vigil had taken place at the vicinity of 675 Lincoln Avenue, Brooklyn, New York.
7. On their way back from the vigil, the vehicle that the plaintiff was a passenger in, while operated by Mr. Johnson, had been involved in an accident. The plaintiff sustained serious injuries as a result of the accident.
8. Following the accident, the occupants of the vehicle that had collided with the vehicle the plaintiff was in, approximately four persons, had gotten irate, and attempted to attack the occupants of vehicle that the plaintiff was in, including the plaintiff.
9. As such, the plaintiff had run away from the scene of the accident in order to escape harm, at which point he came across the defendant officer Tyler Angelo, who immediately accosted the plaintiff without asking questions, and placed him in handcuffs.
10. Mr. Johnson was also with the plaintiff at the time he was arrested, and was also arrested by the defendant officer Tyler Angelo.
11. The plaintiff and Mr. Johnson were transported to the 75th precinct by the defendant officer Tyler Angelo.

12. The plaintiff, who was visibly injured, was taken to Brookdale Hospital by the defendant officer Tyler Angelo, and at Brookdale Hospital, the plaintiff's injuries were attended to. Indeed, the plaintiff's nose was found to have been fractured as a result of the accident, and stitched up.
13. The plaintiff was released to the custody of the defendant officer Tyler Angelo following his treatment, and he was transported back to the 75th police precinct.
14. At the 75th precinct the plaintiff was processed, or otherwise fingerprinted and photographed.
15. The plaintiff remained locked up in the cell until approximately 05:00 p.m. on May 25, 2020, at which point he was released without charge. The plaintiff's arrest number was "K20618640".
16. There was absolutely no probable cause for the defendant officer Tyler Angelo to have arrested the plaintiff. He had done nothing wrong and committed no crime or offense.
17. Upon information and well-founded belief, the defendant Sergeant Steven C. Siermala had approved the arrest of the plaintiff.
18. There was absolutely no probable cause for the defendant police officers to have arrested the plaintiff. He had done nothing wrong and committed no crime or offense.

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

19. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 18 of this complaint as though fully set forth herein.
20. That the defendant officers searched, or caused the plaintiff and/or his property to be searched without any individualized reasonable suspicion that he was concealing weapons or contraband.
21. As a result of the foregoing, the plaintiff and/or his property was/were subjected to an illegal and improper search.

22. As a result of the foregoing, the plaintiff was subjected to an illegal and improper strip search.
23. The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
24. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983/NEW YORK STATE LAW

25. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 24 of this complaint as though fully set forth herein.
26. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
27. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
28. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendant officers, individually and severally.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

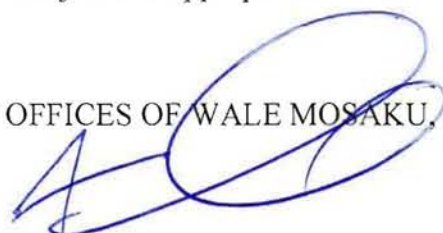
29. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 28 of this complaint as though fully set forth herein.

30. Each defendant officer had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
31. Each defendant officer failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
32. As a consequence of each defendant officer's actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated.
33. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against the defendant.

WHEREFORE, plaintiff prays for judgment against each defendant officer, as follows: for compensatory damages in an amount to be proven at trial; for exemplary and punitive damages in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
September 14, 2021

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:

KAREM McKOY,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

POLICE OFFICER TYLER ANGELO (Tax #: 959456) and
SERGEANT STEVEN C. SIERMALA (Tax #: 947491),
Defendants.

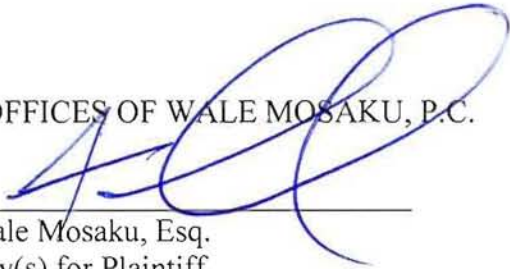
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
September 14, 2021

LAW OFFICES OF WALE MOSAKU, P.C.


BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS Index No.

KAREM MCKOY,

Plaintiff(s),

-against-

POLICE OFFICER TYLER ANGELO (Tax #: 959456) and
SERGEANT STEVEN C. SIERMALA (Tax #: 947491),
Defendant(s).

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 20__

Attorney(s) for Defendant(s)